

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.231326 of 2018
(Muhammad Maqsood v. The State & 3 others)

JUDGMENT

Date of hearing: **22.07.2025**

Appellant by: Mr. Arshad Ali Chohan, Advocate.
Respondents By: Mr. Amir Naseer, Advocate.
State by: Ms. Asiya Yasin, Deputy Prosecutor General
with Zubair ASI.

Abher Gul Khan, J. This criminal appeal has been filed by Muhammad Maqsood (appellant) under Section 417, Cr.P.C., challenging the judgment dated 23.06.2018 whereby learned Judicial Magistrate 1st Class, Arifwala, upon conclusion of the trial proceedings in case FIR No.384/2013 dated 12.08.2013 registered under Sections 337-F(i), 337-F(ii), 337-F(iv), 337-F(v) & 34 PPC at Police Station Saddar Arifwala, acquitted Shahid Aslam, Haq Nawaz, and Muhammad Asif (respondents No. 2 to 4) of the charges levelled against them.

2. The facts essential for the adjudication of the present criminal appeal are that Muhammad Maqsood (appellant) lodged a criminal case against the respondents through FIR No. 384/2013 (Exh.PH), wherein he alleged that his brother, Muhammad Akram, was proceeding towards a shop in village 151/EB for the purpose of purchasing household goods. When Muhammad Akram reached the main *Chowk* of the village, the accused, namely Haq Nawaz armed with a *toka*, Muhammad Asim armed with a hatchet, Shahid alias Shahda armed with a *toka*, and Muhammad Aslam armed with a .30 bore pistol suddenly appeared at the scene and intercepted him. According to the contents of the FIR, Muhammad Aslam accused raised a

lalkara stating that Muhammad Akram should be taught a lesson for divorcing his sister, Mst.Khalida Parveen, whereupon accused Haq Nawaz gave a *toka* blow which hit Muhammad Akram on his left knee. Muhammad Asim then inflicted a hatchet blow which landed at the left hand of Akram. Subsequently, Shahid alias Shahda inflicted a *toka* blow hitting at the back of leg of Akram. Muhammad Aslam allegedly gave a butt blow of his pistol which landed on the lower part of Akram's left knee, and thereafter Muhammad Asim again used the butt of his weapon to deliver a blow to Akram's right knee. As a result of the aforementioned assault, Muhammad Akram lost consciousness and fell on the ground. Even then, the accused continued to inflict further injuries upon him. Upon hearing the cries of Muhammad Akram, several residents of the area, including Muhammad Anwar and Muhammad Mushtaq, rushed to the spot and witnessed the incident. The witnesses intervened and managed to rescue Muhammad Akram from the accused. Thereafter, the injured was taken to Police Station Saddar Arifwala on a tractor trolley by the complainant and eyewitnesses. From there, a medical docket was obtained, and Muhammad Akram was taken for medico-legal examination. The alleged motive behind the occurrence, as stated in the FIR, was that Muhammad Akram had earlier divorced Mst.Khalida Parveen, the sister of the accused, which had caused resentment among them and ultimately led to the assault. Following the registration of the case, police initiated investigation, and upon its conclusion, a report under Section 173 Cr.P.C. was submitted before the learned trial court. During the trial, the prosecution produced a total of seven witnesses to prove the charges against the respondents. After the closure of the prosecution's evidence, the accused were examined under Section 342 Cr.P.C., during which they denied all allegations and pleaded innocence. They,

however, did not opt to appear as witnesses in their own defence under Section 340(2) Cr.P.C., nor did they produce any evidence in defence. Upon conclusion of the trial proceedings, the learned Magistrate, finding the prosecution's case unconvincing and lacking in evidentiary strength, acquitted all the accused of the charges, hence the instant criminal appeal.

3. Arguments heard. Record perused.

4. A thorough examination of the case record indicates that the present matter stems from an incident that occurred on 04.08.2013 at about 6:30 p.m., within the territorial jurisdiction of Police Station Saddar Arifwala. On the evening in question, Muhammad Akram (PW.3), the brother of the complainant Muhammad Maqsood (PW.1), was *en route* to a nearby shop with the intention of purchasing household articles. While he was on his way, he was intercepted and ambushed by the accused, namely Shahid Aslam, Haq Nawaz, and Muhammad Asim. The assailants launched a violent and unprovoked attack on Muhammad Akram using various weapons, including *toka*, pistol, and hatchet. As a result of this assault, Muhammad Akram sustained multiple injuries on different parts of his body. According to the MLC (Exh.PA/1), Muhammad Akram (PW.3) received a total of eight sharp edged injuries.

5. In wake of abovementioned facts, I have observed that the incident in question occurred on 04.08.2013 at around 6:30 p.m. in the main *chowk* of village 151/EB, which is located about six miles from Police Station Saddar Arifwala. Despite such proximity of the location to the police station, the report of the crime was not promptly made. Instead, the information was formally conveyed to the police by the complainant, Muhammad Maqsood (PW.1), through a written application (Exh.PA) on 12.08.2013 at about 10:00 a.m., resulting in a delay of nearly eight days in the registration of FIR. This delay raises significant

concerns, especially when examined in conjunction with the medico-legal record. According to the Medico-Legal Certificate (Exh.PA/1), the medical examination of the injured Muhammad Akram was conducted on the day of incident, at 9:20 p.m. at THQ Hospital, Arifwala. Notably, Muhammad Akram was brought to the hospital by Muhammad Zubair 252/HC, which clearly indicates that the police had knowledge of the incident on the very day it occurred i.e. well before the formal complaint was lodged. Therefore, the unexplained and prolonged delay of eight days in reporting the matter cannot be casually overlooked. On the contrary, it casts serious doubt on the veracity of the prosecution's version and strongly suggests that the intervening period may have been utilized to concoct and fabricate a narrative to implicate the accused. Such delay undermines the credibility of the complaint and requires careful judicial scrutiny. Reliance in this context is placed upon the case reported as Abid Hussain and another v. The State and others (2024 SCMR 1608) wherein the Supreme Court of Pakistan gave the following observation:--

“Admittedly, the FIR was subsequently registered upon a written complaint of the complainant, drafted by a petition writer. Facts and circumstances lead us to a conclusion that the FIR was not registered promptly, rather, the matter was reported belatedly to the police, after deliberation and conclusion, therefore, false involvement of the appellant cannot be ruled out.”

6. During the trial, the eyewitness account in this case was provided by Muhammad Maqsood complainant (PW.1) Muhammad Akram (PW.3), the injured and Muhammad Mushtaq (PW.4). According to the testimonies of Muhammad Maqsood (PW.1) and Muhammad Mushtaq (PW.4), they were already present at the main Chowk of the village. Upon hearing the cries for help from Muhammad Akram (PW.3), they claim to have rushed to the scene of the incident and witnessed the occurrence. However, a careful and critical analysis of their

statements suggests a different picture. Despite their claim of arriving at the scene after the incident had already begun, their narratives are highly detailed and consistent with the version of events presented by the injured. Their testimonies describe the incident with such precision and coherence that it gives the impression that they were present with Muhammad Akram at the time of the occurrence, rather than arriving later. This raises doubts about the veracity of their stated positions and casts a shadow over the credibility of their claims of arriving *post facto*. During cross-examination, Muhammad Maqsood complainant (PW.1) unequivocally admitted that “*there was no shop at the place of occurrence.*” This stance was verified by Muhammad Mushtaq (PW.4), who during his cross-examination also confirms the absence of any shop at the crime scene. Furthermore, un-scaled site plan (Exh. PB), prepared by Ali Sher, ASI/Investigating Officer (PW.5), at the pointation of Muhammad Maqsood (PW.1) further reinforces this fact. The site plan does not depict the existence of any shop or even a Chowk at the place of incident. Instead, the site plan marks only two specific points situated on a thoroughfare, with Point No.1 identified as the exact spot where accused Haq Nawaz etc. allegedly inflicted injuries on the person of Muhammad Akram injured (PW.3). The absence of any shop or Chowk at the crime scene not only casts serious doubt on the prosecution’s narrative but also damages the suggestion that the prosecution witnesses were present at the spot for any legitimate business, social interaction, or other credible reason. Additionally, Muhammad Maqsood (PW.1), the complainant, maintained that application (Exh.PA) was authored by a scribe. However, he failed to state anywhere in his testimony that this application was drafted under his explicit dictation. Crucially, the scribe who purportedly wrote the application was neither produced before the trial court for

examination nor was he associated with the investigative process, which casts doubt on the authenticity and spontaneity of the written complaint. Furthermore, it has not escaped the notice of this Court that Muhammad Maqsood (PW.1) is the real brother of the injured witness, Muhammad Akram (PW.3). According to his version, he reached the scene after hearing the alarm raised by his brother and allegedly witnessed the occurrence. It has also been observed by me that despite the claim of Muhammad Maqsood (PW.1) being present at the site of the violent incident, he remained entirely unharmed and did not sustain even a minor injury. In the context of a violent episode where his real brother was attacked, his complete lack of injury appears implausible and is contrary to ordinary human conduct and natural probabilities. In view of the delay in the registration of FIR, coupled with the manner in which both Muhammad Maqsood (PW.1) and Muhammad Mushtaq (PW.4) testified before the trial court, this Court is compelled to conclude that their presence at the scene of the incident is highly doubtful. Their testimonies, therefore, are found to be unreliable and are accordingly excluded from consideration.

7. With regard to the testimony of Muhammad Akram injured (PW.3), it is to be noted that although he sustained injuries during the incident in question, yet the mere fact of being injured is not, in itself, sufficient to automatically render him a credible or trustworthy witness. The law requires more than just the physical presence of an injured person at the crime scene, it demands an assessment of the intrinsic reliability and consistency of his testimony. The credibility of a witness must be judged holistically, not presumed solely on account of injury. In this respect, guidance can be sought from observations of the Supreme Court of Pakistan expressed in the cases reported as Amin Ali v. The State (2011 SCMR 323) and Nazir Ahmad v.

Muhammad Iqbal and another (2011 SCMR 527), where the Court held that the testimony of an injured witness, though significant, must still be subjected to careful scrutiny before being relied upon. In light of this settled principle, the statement of Muhammad Akram (PW.3) has been carefully examined. It is observed that prior to his medico-legal examination, the police prepared an injury statement (Exh.PC), which showed that he had sustained four injuries. However, MLC (Exh.PA/1) later issued reflects a total of eight injuries. This unexplained discrepancy between the police documentation and the medical record raises concerns about the accuracy and completeness of the injury statement. Moreover, it is further observed that no radiologist was produced during the trial, nor any radiology report was brought on the record to substantiate or clarify the nature of injuries No.1, 2, and 4. The absence of supporting medical evidence or expert opinion, particularly when certain injuries may be internal or bone-related, undermines the evidentiary value of the MLC (Exh.PA/1) and casts a shadow on the reliability of the medical findings as well as the testimony of the injured witness. Even otherwise, Dr.Usman Masood (PW.2) who conducted the medico legal examination of injured Muhammad Akram during cross-examination admitted that *“It is correct that regarding injury No.1,2 and 4 no radiologist is available for these injury declaration..... it is correct that no x-ray film is available today or as well as in judicial file.”* Such an omission on the part of the prosecution significantly undermines the credibility of the prosecution’s case, particularly with respect to the injuries claimed to have been sustained by Muhammad Akram (PW.3). It has also been observed by this Court that during cross-examination, Muhammad Akram injured (PW.3) candidly admitted that he did not have any statement recorded before the police. In contrast, Ali Sher ASI/Investigating Officer

(PW.5) during cross-examination claimed that the report under Section 173, Cr.P.C. was submitted on 03.11.2013, and that the statement of Muhammad Akram under Section 161 Cr.P.C. was subsequently recorded on 15.11.2013. Even if the version of Ali Sher ASI/Investigating Officer (PW.5) is to be accepted at face value, it still reveals a significant and unexplained delay of more than three months in recording the statement of a key prosecution witness. Such an inordinate delay not only raises serious questions about the spontaneity and reliability of the statement but also casts doubt on the overall fairness and integrity of the investigative process. It is a well-settled principle of criminal jurisprudence that timely recording of statements of witnesses, particularly those of injured, is essential for ensuring the credibility of the prosecution's case. The failure to do so in the present case weakens the evidentiary value of Muhammad Akram's testimony and renders it suspect in the eye of the law. Such delayed statement of the injured PW also smacks some foul play and has been deprecated by the Supreme Court of Pakistan in the case reported as Muhammad Khan v. Maula Bakhsh and another (1998 SCMR 570) with the following observation:-

“It is a settled law that credibility of a witness is looked with serious suspicion if his statement under section 161, Cr.P.C. is recorded with delay without offering any plausible explanation.”

In these circumstances, the mere presence of injuries on the person of the injured witness is not, by itself, sufficient to warrant the conviction of the accused, particularly in light of the serious doubts and inconsistencies highlighted above.

8. With respect to the alleged motive, it is noteworthy that Muhammad Akram injured (PW.3) had divorced the sister of respondent Haq Nawaz approximately two years prior to the occurrence. Given the considerable lapse of time between the divorce and the incident, the motive attributed to the respondents

lacks immediacy and appears to be remote and unconvincing. Such a delayed motive, without any intervening triggering event or recent provocation, is insufficient to establish a compelling reason for the accused to commit the alleged offence. Furthermore, the alleged recoveries of weapons, namely, a *datar* at the instance of accused Muhammad Aslam, a sickle at the instance of Shahid, and a hatchet at the instance of Asim, also fail to lend credible support to the prosecution's case. These recoveries, as presented, do not find independent corroboration through forensic or circumstantial evidence that could link the weapons to the commission of the crime. In the absence of such corroborative material, these so-called recoveries remain inconsequential and do not strengthen the prosecution's version in any meaningful way. Taken together, both the weak motive, as well as the unsubstantiated recoveries, further erode the credibility of the prosecution's case.

9. In view of the foregoing discussion, this Court finds that the learned trial Court rightly acquitted Shahid Aslam, Haq Nawaz, and Muhammad Asim (respondents No. 2 to 4) of the charges framed against them. The judgment delivered by the trial Court has been examined by this Court with utmost care and circumspection. However, no legal infirmity, mis-reading of evidence, or perversity in reasoning has been identified that would warrant interference with the findings leading to the acquittal of respondents. It is a well-settled principle of criminal jurisprudence that once an accused is acquitted of the charges, a presumption of innocence is further strengthened in his favour. Such a verdict of acquittal cannot be lightly set aside, and interference by an appellate court is justified only in exceptional and compelling circumstances where the judgment under challenge is shown to be manifestly illegal, arbitrary, or perverse. In this regard, reliance is placed on the cases reported as Mst.

Anwar Begum v. Akhtar Hussain alias Kaka and 2 others (2017 SCMR 1710) and Raja Khurram Ali Khan and 2 others v. Tayyaba Bibi and another (PLD 2020 Supreme Court 146), which reinforce the principle that reversal of an acquittal must be based on strong and convincing grounds. Consequently, this Court finds no merit in the instant criminal appeal which is hereby dismissed.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

This judgment was announced
on 22.07.2025,
and after preparation was
signed on
29.07.2025
Najum*